

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404110	MCCOY vs EL TORO MARKET	MOTION TO BE RELIEVED AS COUNSEL FOR SAWAN FOOD'S INC.

Tentative Ruling: The unopposed motion to be relieved is granted. The order shall be effective upon filing a proof of service of the final order. Defendant Sawan Food's inc. is ordered to appear for an order to show cause of 9/29/2026 at 8:30 am as to why its answer should not be stricken for failing to be represented by counsel.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503970	POPPLEWELL vs CITY OF RIVERSIDE	MOTION TO PERMIT DISCLOSURE OF INFORMATION WITHIN PERSONNEL FILE OF PLAINTIFF RICHARD CRANFORD
CVRI2503970	POPPLEWELL vs CITY OF RIVERSIDE	MOTION TO PERMIT DISCLOSURE OF INFORMATION WITHIN PERSONNEL FILE OF PLAINTIFF RAYMOND OLIVARES
CVRI2503970	POPPLEWELL vs CITY OF RIVERSIDE	MOTION TO PERMIT DISCLOSURE OF INFORMATION WITHIN PERSONNEL FILE OF PLAINTIFF TIMOTHY POPPLEWELL

Tentative Ruling:

Factual / Procedural Context:

Plaintiffs Timothy Popplewell, Raymond Olivares and Richard Cranford were police officers with Defendant City of Riverside. They had previously served in the military and upon conclusion of their service, were deemed to be 100% Disabled Veteran status. They were all investigated for obtaining disabled plates from the DMV and have been placed on administrative leave since then. The complaint, filed 7/17/25, asserts: (1) discrimination; (2) failure to engage in the interactive process; (3) failure to accommodate; (4) retaliation; (5) failure to take all reasonable steps to prevent discrimination and retaliation; and (6) injunctive relief. Trial is not set.

Defendant moves for each of the Plaintiffs' personnel files, including: (1) Internal Affairs Investigation file; (2) Plaintiffs' recorded/transcribed IA interviews; (3) Plaintiff's employment application; (4) Plaintiff's pre-employment medical records and clearances; (5) records of Plaintiffs' evaluations and assessments; (6) working schedule and leave taken; (7) records of other investigations including use of force, pursuits and other incidents; and (8) records of special teams and assignments Plaintiffs' participated in as an officer. As the requests are all the same, the Court is issuing one ruling for all three motions. The IA files are the current basis of discipline, while the other documents relate to Plaintiffs' claims for discrimination and failure to accommodate. City argues that the

records will show the Plaintiffs are not disabled, despite representations made to DMV. It also contends that under Penal Code section 832.7(b)(1)(C) provides an exemption for records related to sustained findings of dishonesty. It asserts that the Police Department sustained findings that Plaintiffs were dishonest and made false statements, and therefore, are no longer confidential.

Plaintiffs do not oppose disclosure of the IA file at issue, subject to an in-camera review and protective order. They object to the remaining as there are no time limitations. They contend section 832.7(b)(1)(C), which limits disclosure of dishonesty related to the reporting, investigation or prosecution of a crime; or reporting of or investigation of misconduct by another officer. For category 2, they argue all interviews (and not just Plaintiffs) should be included. For category 3, they argue the application should be limited to whether he needed a workplace accommodation. For category 4, there is no good cause for pre-employment medical records which would only show his medical clearance at the time of hire, not when he applied for the DMV plates. For category 7, they argue "other incidents" is not defined, includes other officers who have not received notice, and is broader than their own theory. They argue the requests invade non-party officer privacy rights.

In reply, Defendant asserts its declaration establishes good cause, which provides sufficient facts. It argues for category 2, Plaintiff is seeking to bootstrap additional requests for disclosure without filing his own *Pitchess* motion. For category 3, it argues the court may tailor the document during the in-camera review. For category 4, it asserts that Plaintiffs have claimed a 100% disability from military service, and any physical conditions involving mobility impairments are noted in their pre-employment medical records. For category 7, it argues that any contact he engaged in would contradict statements made to VA doctors and the DMV about having substantial mobility impairment or disability. It would also dispute claims that he was disciplined for discriminatory or retaliatory reasons, and challenge his credibility. It states that any third-party officer personnel files are speculative.

Analysis:

Pursuant to Evidence Code section 1043 and Penal Code section 832.7, police officer personnel records, or records concerning citizen complaints made against peace officers are privileged and may not be disclosed except under a motion under sections 1043 and 1046 (a "Pitchess motion"). The Pitchess motion must be accompanied by a declaration showing good cause for the disclosure of the records, sets forth the materiality of the records, and stating upon reasonable belief that the governmental agency has the requested documents. (Evidence Code §1043(b)(3).) Good cause must be sufficiently specific to preclude the possibility of merely seeking helpful information. (*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) The moving party only needs to show a plausible factual foundation for discovery. (*Warrick v. Superior Court (City of Los Angeles Police Dept.)* (2005) 35 Cal.4th 1011, 1019.) All that is required is the presentation of a scenario that may have or could have occurred, which is a relatively low threshold. (*Uybungco v. Superior Court* (2008) 163 Cal.App.4th 1043, 1048.) An attorney declaration based upon information and belief and containing hearsay may be used to evidence good cause in support of a Pitchess motion. (*Haggerty v. Superior Court*. (2004) 117 Cal.App.4th 1079, 1086.)

“Good cause for discovery exists when the defendant shows both ‘ ‘materiality’ to the subject matter of the pending litigation and a ‘reasonable belief’ that the agency has the type of information sought.’ ” [Citation.] A showing of good cause is measured by “ ‘relatively relaxed standards’ ” that serve to “ ‘insure the production’ ” for trial court review of “ ‘all potentially relevant documents.’ ” (*Warrick v. Superior Court* (2005) 35 Cal.4th 1011, 1016.) It “is a ‘relatively low threshold for discovery.’ ” (*Id.* at 1019.)

The parties do not dispute categories 1 (IA investigation file), 5 (evaluations and assessments), 6 (working schedule and leave taken), and 8 (records of special teams and assignments). The motion is granted as to these categories.

At issue are categories 2 – 4 and 7.

A. Category 2 (Plaintiffs’ recorded/transcribed IA interviews)

Plaintiffs contend that Defendant needs all transcripts, not just theirs, in order to get the whole picture. However, that does not dispute the good cause requirement. Defendant is correct that Plaintiffs are free to file their own Pitchess motions to obtain those other transcripts and provide context. The motion is granted.

B. Category 3 (employment application)

Plaintiffs assert that only a portion of their employment application is relevant. Defendant asserts that the application is relevant to demonstrate whether Plaintiffs disclosed any workplace accommodations. That does not require the entire application. The motion is granted in part as to those sections of the application that address medical conditions, physical capabilities and requests for accommodation.

C. Category 4 (pre-employment medical records and clearances)

Defendant states that this information is relevant to determine the extent of the disability Plaintiffs represented they had as they contend Plaintiffs were medically cleared to physically perform the essential tasks of an officer and do not need accommodations. Plaintiffs argue that this only demonstrates their medical conditions at the time of hire, not when they applied for the license plates. However, they are relevant for the same reason as the employment application—they would demonstrate whether Plaintiffs needed any accommodations at the time they were hired. The motion is granted.

D. Category 7 (other investigations)

This category seeks investigations by the police department into Plaintiffs’ use of force, pursuits and other incidents.

Defendant first argues that Penal Code section 832.7(b)(1)(C) applies. The section states:

Any record relating to an incident in which a sustained finding was made by any law enforcement agency or oversight agency involving dishonesty by a peace officer or custodial officer directly relating to the reporting, investigation, or prosecution of a crime, or directly relating to the reporting of, or investigation of misconduct by, another peace officer or custodial officer, including, but not limited to, any false statements, filing false reports, destruction, falsifying, or concealing of evidence, or perjury.

Defendant is not asking for records of dishonesty relating to the reporting/investigation/prosecution of a crime or relating to the reporting/investigation of misconduct by another officer. Thus, section 832.7(b)(1)(C) does not apply.

Defendant contends this would demonstrate that Plaintiffs' ability to use force and engage in foot pursuits would contradict statements made to the VA and DMV about substantial mobility impairment or any defense. Plaintiffs oppose contending that "other incidents" is vague. The court agrees. However, the remaining information has demonstrated cause. Plaintiffs merely speculate in opposition that these may relate to third party officer records. If they do, they will not be disclosed during the in-camera review. Accordingly, the motion is granted as to Plaintiff's use of force investigations.